

24SMCV05369 24SMCV05369

County: los-angeles

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Tentative

Ruling

Joseph Ariel Hazani v. University of
Southern California. Case No. 24SMCV05369

Defendant's Motion for
Reconsideration

Hearing Date: August 14, 2026

Motion for Reconsideration

Plaintiff Joseph A. Hazani filed suit against Defendant University of Southern California (USC) in November, 2024 alleging various causes of action, including breach of contract, stemming from his dismissal from a USC Master's program for his failure to maintain a 3.0 GPA. Defendant dismissed Plaintiff from USC in January 2010. In 2020, Plaintiff attempted to re-enroll in a graduate program at USC. On March 22, 2021, USC denied Plaintiff's request to re-enroll.

Defendant filed a demurrer without motion to strike on January 8, 2025. Plaintiff filed the First Amended Complaint (FAC) on April 7, 2025, mooted Defendant's demurrer.

Plaintiff moved to transfer venue to federal court on April 8, which was denied on August 25.

On September 30, 2025, Defendant's demurrer was sustained without leave to amend.

Plaintiff filed a motion to vacate judgment on December 5, 2025. On March 3, 2026, the Court denied Plaintiff's motion as procedurally improper.

On March 13, 2026, Plaintiff filed a motion for reconsideration of the Court's order denying Plaintiff's motion to vacate judgment.

Plaintiff argues that the issuance of an AIA Health, Safety, and Welfare Validation on August 18, 2025 shows that Plaintiff did not discover USC's allegedly fraudulent concealment of Plaintiff's work's commercial viability. (Motion for Reconsideration, pp. 3-4.)

In opposition, USC argues that this fact is not new, because the report was issued on August 18, 2025, almost two months before the Court sustained Defendant's demurrer without leave to amend.

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd., (a).)

As it relates to new or different facts, circumstances, or law under Code of Civil Procedure section 1008, subdivision (a), "the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time." (Shiffer v. CBS Corp. (2015) 240 Cal.App.4th 246, 255.) Furthermore, "facts of which the party seeking reconsideration was aware at the time of the original ruling are not "new or different." (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.);

The Court agrees with USC. Additionally, this motion for reconsideration applies to Plaintiff's December 5 Motion to Vacate Judgment. The Court denied the motion to vacate judgment as procedurally improper, not on the merits. Even if the AIA validation were new, it would not qualify as a change in law or fact that would change the Court's reasoning on the Motion to Vacate.

Conclusion

Hazani's Motion for Reconsideration is DENIED.